

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**DEFENDANT’S NOTICE PRESERVING PROCEDURAL AND
EVIDENTIARY DEFENSES FOR FINAL JUDGMENT**

Defendant, Marc Moszkowski, appearing pro se, respectfully files this notice to ensure the completeness of the evidentiary record under consideration for the forthcoming Final Judgment.

1. The Court’s communication of August 5, 2025, indicates that review is being conducted of the Plaintiff’s Proposed Final Judgment, Defendant’s redlined version, “*as well as the evidence presented at trial.*”
2. Defendant respectfully notes that, due to documented medical incapacity and financial constraints, he was unable to attend trial in person, having been denied the opportunity for remote appearance

despite prior request and supporting documentation.

3. The case file contains substantial, admissible exhibits and sworn statements filed by Defendant prior to trial, comprising over 2,800 pages, which directly address the issues in dispute, including material that impeaches or refutes much of Plaintiffs' trial evidence.
4. These exhibits were timely filed, served, and docketed, and include documentary proof, contemporaneous records, and prior judicial determinations relevant to the claims and defenses.
5. Defendant respectfully requests confirmation that the Court's review for purposes of the Final Judgment will encompass all evidence and exhibits contained in the record, not solely the evidence presented at trial in Defendant's absence. This includes, without limitation: (a) the statute of limitations defense, which was the principal basis for dismissal of this exact case in federal court before remand; (b) the absence of any valid corporate Board resolution authorizing this lawsuit; and (c) the unrebutted documentary record demonstrating that none of Plaintiffs' allegations is factually sustainable. All three issues were timely raised, fully briefed, supported by sworn exhibits, and remain adjudicated on the merits.

Respectfully submitted this 5th day of August, 2025.

Marc Moszkowski, Pro Se

Email: m.moszkowski@deepgulf.net

Le Verdos

83300 Châteaudouble, France



CERTIFICATE OF SERVICE

I hereby certify that, on this 5th day of August, 2025, a copy of this Notice has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

